

HOW TO FILE THIS PACKET

North Dakota Petition to Close Nonconviction Records

Case: 08-2019-CR-00742

Court: District Court, Burleigh County, North Dakota

County: Burleigh County

Judicial district: South Central Judicial District

Order of nonconviction entered: April 12, 2021

WHY THIS PACKET AND NOT AUTOMATIC CLOSING

The order of nonconviction in this case was entered before August 1, 2025.

Court records for orders of nonconviction entered on or after August 1, 2025 close on their own 61 days after the order and need no filing. Because this order came earlier, the court record is closed by filing the Petition to Close Nonconviction Records in this packet.

WHAT IS IN THIS PACKET

1. Petition to Close Nonconviction Records
2. [Proposed] Order Closing Nonconviction Records
3. Proof of Service on the Prosecuting Attorney (file only if the judge requires service)

WHERE TO FILE

File with: Clerk of District Court, Burleigh County, South Central Judicial District

Nonconviction records use § 12-60.1-05: orders entered on or after August 1, 2025 close automatically after 61 days, while earlier orders use a Petition to Close Nonconviction Records filed with the clerk of court, with no filing fee, where the judge may require service on the prosecutor.

FILING FEE

Nonconviction closing under §12-60.1-05 (Petition to Close Nonconviction Records, for pre-August 1, 2025 orders) has no filing fee.

No filing fee may be charged on a Petition to Close Nonconviction Records, so no fee waiver application is part of this packet.

COPIES AND SERVICE

File the petition and the proposed order with the clerk of court, and keep a copy of everything filed. If the judge requires service on the prosecuting

attorney, serve a copy of the petition and the proposed order and file the proof of service.

AFTER YOU FILE

Nonconviction closing under § 12-60.1-05: for orders entered before August 1, 2025, on a Petition to Close Nonconviction Records the court must enter the closing order within 10 days if eligible, and no filing fee may be charged.

The source for this route states no hearing requirement and no objection period for a Petition to Close Nonconviction Records; it states only that the court must enter the closing order within 10 days if the requirements are met. No hearing date, objection window, or appearance instruction is asserted.

WHAT THE ORDER DOES AND DOES NOT REACH

The North Dakota petition form says the order closes only records controlled by the North Dakota court system; it does not close records controlled by the prosecutor or law-enforcement entities.

Access to closed nonconviction court records is limited to the clerk, judge, juvenile commission, criminal justice agency, defendant, defendant's lawyer, state's attorney, or a person with a written judge's order.

IMPORTANT

This North Dakota RCAP draft is legal information, not legal advice, and does not guarantee eligibility or any court, agency, or pardon outcome. North Dakota is a sealing-first state; relief depends on the exact court record, charge, outcome, sentence completion, restitution, new-conviction history, and which agency holds the record.

Prepared by petitioner using LegalEase RCAP. This is not an official court form.

IN THE DISTRICT COURT OF THE STATE OF NORTH DAKOTA

STATE OF NORTH DAKOTA,
Plaintiff,

v.

JORDAN AVERY SAMPLE,
Petitioner.

DOCKET NO.: 08-2019-CR-00742

JUDICIAL DISTRICT: South Central Judicial District

PETITION TO CLOSE NONCONVICTION RECORDS PURSUANT TO N.D.C.C. § 12-60.1-05

STATUTORY AUTHORITY

N.D.C.C. § 12-60.1-05 – Nonconviction court record closing under N.D.C.C. § 12-60.1-05: a nonconviction means all charges in the case were dismissed or the person was acquitted of all charges. Orders entered on or after August 1, 2025 close automatically 61 days after the order; earlier orders use a Petition to Close Nonconviction Records.

N.D.C.C. § 12-60.1-05 – Nonconviction records use § 12-60.1-05: orders entered on or after August 1, 2025 close automatically after 61 days, while earlier orders use a Petition to Close Nonconviction Records filed with the clerk of court, with no filing fee, where the judge may require service on the prosecutor.

I. JURISDICTION AND VENUE

1. This Court has jurisdiction over this matter as the District Court of Burleigh County, North Dakota, where the proceedings occurred.
2. Venue is proper in this Court because the criminal proceedings that are the subject of this petition occurred in Burleigh County, North Dakota.

II. PARTIES

3. Petitioner is Jordan Avery Sample, whose address is 412 North Sample Avenue, Bismarck, ND 58501.
4. Plaintiff is the State of North Dakota.
5. Petitioner has also been known as: Jordan A. Sample.

III. FACTS AND CASE HISTORY

6. On or about September 3, 2019, Petitioner was charged with Criminal trespass by Bismarck Police Department.
7. The matter was assigned Docket Number 08-2019-CR-00742.
8. On April 12, 2021, the matter was resolved with the following disposition: Nonconviction – all criminal charges in the case were dismissed, or the Petitioner was acquitted of all criminal charges.

IV. ELIGIBILITY ALLEGATIONS

9. Petitioner may be eligible for closing on the following basis:
Nonconviction court record closing under N.D.C.C. § 12-60.1-05, petition branch – the order of nonconviction was entered before August 1, 2025.
10. Nonconviction closing under § 12-60.1-05: for orders entered before August 1, 2025, on a Petition to Close Nonconviction Records the court must enter the closing order within 10 days if eligible, and no filing fee may be charged.
11. All criminal charges in the above-captioned case were dismissed, or the Petitioner was acquitted of all criminal charges.
12. The order of nonconviction was entered on April 12, 2021, which is before August 1, 2025, so this case uses the Petition to Close Nonconviction Records rather than the automatic closing that applies to orders of nonconviction entered on or after August 1, 2025.
13. The dismissal was not part of a plea agreement involving conviction on another offense; the dismissal was not due to a finding that the Petitioner was not fit to proceed; any not-guilty verdict was not due to lack of criminal responsibility; and the case was not appealed.

IMPORTANT: Petitioner may be eligible; this document does not guarantee eligibility or a court outcome.

V. REQUESTED RELIEF

WHEREFORE, Petitioner respectfully requests that this Court:

- (a) Find that the above-captioned criminal case ended in a nonconviction because all criminal charges in the case were dismissed or the Petitioner was acquitted of all criminal charges;
- (b) Order that the court record in the above-captioned criminal case be closed under N.D.C.C. § 12-60.1-05; and
- (c) Grant such other and further relief as this Court deems just and appropriate.

VI. VERIFICATION

I, Jordan Avery Sample, declare that the statements made in this petition are true and correct to the best of my knowledge, information, and belief.

Jordan Avery Sample
412 North Sample Avenue, Bismarck, ND 58501

Date: _____

[NOTE: Date of birth and Social Security Number should be added by petitioner if required by the applicable form or local court rules.]

FILED WITH THIS PETITION

- [Proposed] Order Closing Nonconviction Records
- Proof of Service on the Prosecuting Attorney (filed only if the judge requires service on the prosecuting attorney)

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IN THE DISTRICT COURT OF THE STATE OF NORTH DAKOTA

STATE OF NORTH DAKOTA v. JORDAN AVERY SAMPLE
DOCKET NO.: 08-2019-CR-00742

[PROPOSED] ORDER

AND NOW, this _____ day of _____, 20____, upon consideration of the Petition filed herein, and any response thereto, it is hereby ORDERED and DECREED that:

The court record in the above-captioned criminal case is CLOSED under N.D.C.C. § 12-60.1-05.

Access to closed nonconviction court records is limited to the clerk, judge, juvenile commission, criminal justice agency, defendant, defendant's lawyer, state's attorney, or a person with a written judge's order.

The North Dakota petition form says the order closes only records controlled by the North Dakota court system; it does not close records controlled by the prosecutor or law-enforcement entities.

BY THE COURT:

J.

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PROOF OF SERVICE ON THE PROSECUTING ATTORNEY

Service on the prosecuting attorney is conditional on this route: on a Petition to Close Nonconviction Records the judge may require service on the prosecutor. Complete and file this proof of service if the judge requires service; it is not required unless the judge requires it.

I certify that on _____, I served a copy of this Petition upon the prosecuting attorney at the following address:

[PROSECUTING ATTORNEY ADDRESS – CONFIRM WITH CLERK OF COURT]

Service method: [personal delivery / first-class mail / other as permitted by applicable court rules]

Jordan Avery Sample

Date: _____

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